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MEXICO

Human Rights Developments

Despite the announcement in December 1998 of a new federal initiative to promote and strengthen human rights, serious and widespread human rights violations, including torture and arbitrary detention, continued to take place in Mexico during 1999. As in years past, abuses often occurred in the context of the criminal justice system, either as police or soldiers made arrests, or as prosecutors processed cases. Rather than confront these problems head-on, politicians either ignored human rights topics altogether or chose to blame human rights groups for exacerbating public security problems. Indeed, Mexican and international human rights groups increasingly found themselves under attack by political, business, and even religious leaders who publicly accused them of protecting criminals to the detriment of law-abiding citizens. With public security concerns at the top of the national agenda and presidential elections slated for July 2000, another year passed in which Mexico's deeply rooted human rights problems received inadequate attention from authorities.

Although the Mexican government failed to take the actions needed to ameliorate the country's serious human rights problems, authorities did take several important steps toward greater recognition of international human rights law and mechanisms. In December 1998, Mexico officially accepted the jurisdiction of the Inter-American Court of Human Rights. Mexico also promised in July 1999 to ratify the 1951 Refugee Convention and its 1967 protocol. Authorities also reported to Human Rights Watch that, under the auspices of the December 1998 human rights program, progress had been made in identifying other human rights treaties to ratify and reservations to already-ratified treaties that Mexico could withdraw. During the year, Mexico permitted U.N. Special Rapporteur for Extrajudicial, Summary and Arbitrary Executions Asma Jahangir to visit the country, and at this writing was planning to host U.N. High Commissioner for Human Rights Mary Robinson in November. Also positive was the expansion of the autonomy of the federal government's National Human Rights Commission (Comisión Nacional de Derechos Humanos, CNDH), the president of which had been named by the president of Mexico and whose budget was provided by the executive branch of government. After the reforms, the commission's president and budget would depend on the legislature.

The gap between rhetorical support for human rights and the effective protection of rights and adherence to international standards remained great. The December 1998 Program to Strengthen and Protect Human Rights, for instance, lacked specific measures to address the country's human rights problems. While the ratification of human rights accords was vitally important, the fact that Mexico so clearly violated accords it had already ratified indicated that new and innovative steps would have to be taken if human rights abuses were to be countered. With respect to international human rights instruments, including the American Convention on Human Rights, the government demonstrated a startling lack of will to fulfill its obligations. The government ignored recommendations included in several hard-hitting reports from the Inter-American Commission on Human Rights and failed to implement suggestions made by U.N. Special Rapporteur on Torture Nigel Rodley in 1998. Brig. Gen. Francisco Gallardo, jailed in 1993 for recommending the appointment of a military ombudsman, remained in jail, despite a 1996 commission report finding that he should be released.

The topic of public security and human rights remained in the forefront of the Mexican human rights situation during 1999. In February and March, the federal government approved constitutional revisions that stood to weaken human rights protections. Changes in Mexico's legal procedure for challenging authorities' actions, known as *amparo*, would expand the circumstances in which prosecutions could move forward despite the violation of due process guarantees. The changes would also make it easier for prosecutors to obtain arrest warrants by requiring them to document fewer facts about alleged crimes. Mexican human rights groups criticized the revisions for opening the door to abuse in a legal system already prone to fabrication of evidence and coercion of the accused. At this writing, the constitutional revisions had yet to be implemented, as a majority of Mexican states had not yet approved them.

The move to facilitate prosecutions took place concurrently with widespread public outrage at skyrocketing crime rates, a situation blamed in part on human rights guarantees. In January, Mexico's Cardinal Juan Sandoval, in Jalisco state, lambasted human rights groups for defending criminals. Referring to the respected Jalisco State Human Rights Commission, an autonomous government agency, the cardinal noted, "Human rights are not in question. Rather, in question is this human rights organization, whose work has not been beneficial to society." He went on to criticize what he called the agency's practice of "constantly defending delinquents." Reportedly referring to Human Rights Watch as "the mother of all nongovernmental organizations," the cardinal derided the organization as dedicated to destabilizing governments. Business leaders in Jalisco state also criticized human rights groups as defending criminals. In other parts of the country human rights groups also came under attack. In Mexico state, for instance, a new governor was elected in July in part on the strength of the get-tough-on-crime campaign theme of "human rights are for humans, not rats."

Human Rights Watch continued during 1999 to document cases of human rights violations committed in the context of criminal prosecutions. In January a two-year Human Rights Watch study found that despite numerous legal and institutional reforms that successive Mexican governments had touted as evidence of their commitment to protecting human rights, human rights violations-including arbitrary arrest, torture, and even "disappearance"-continued to take place as part of the judicial process in Mexico. Human rights violations stemmed not only from official toleration of abuse but also from the justice system's ineffective protection of individual guarantees and its lax approach to human rights violations. Prosecutors routinely used evidence obtained through human rights violations, and judges availed themselves of permissive laws and legal precedent to condemn victims while ignoring abuses.

The Human Rights Watch report concluded: "The Mexican government has failed to structure the justice system-understood to encompass police, prosecutors, and the courts-such that the goals of investigating crimes and punishing criminals are consonant with the aims of protecting human rights and promoting the rule of law." Abuses took place in both state and federal jurisdictions, and in all regions of the country, whether the victim was a suspected robber, accused drug trafficker, or alleged leftist guerrilla.

The case of Alfonso Martín del Campo illustrated the human rights shortfalls of Mexico's justice system. Sentenced to fifty years in prison for a gruesome double murder committed on May 30, 1992, Martín del Campo lost his final bid for freedom in March 1999, when a Mexico City Superior Court magistrate rejected his plea of innocence. With the exception of a self-incriminating statement made on the day of his arbitrary arrest in 1992, the case file was bereft of any evidence against him. It did contain, however, medical records that showed that he had been severely beaten. After allegedly making his first statement, he repeatedly retracted it on the grounds that he had been tortured-including with a plastic bag over his head. Despite these facts, judges at three successive judicial levels upheld his conviction, thanks to the principle of procedural immediacy, which they cited to ignore signs that he had been coerced into making his self-incriminating statement. As applied in Mexico, the principle held that the first statement made by a suspect could be considered more trustworthy than subsequent statements.

The Inter-American Commission on Human Rights termed the way this principle is interpreted in Mexico "wrong." In a report published in 1998, the commission noted, "The Mexican State is construing the guarantee of procedural immediacy in a way which, instead of serving as a procedural guarantee for those accused of a crime, is becoming its very antithesis, the source of abuse of the

rights of accused persons." In other countries, the principle of procedural immediacy was interpreted in exactly the opposite way from that of Mexico: it was not a person's first statement that had greater value but rather a statement made in the presence of a judge.

Although Mexican judges often deserved blame for failing to factor human rights concerns into their sentences, there were still some cases in which Mexican courts issued positive rulings based on human rights principles. In June, for instance, a federal appeals court ruled that procedural violations in the murder prosecution of Juan Lorenzo Rodríguez Osuna invalidated the guilty verdict that had been issued against him two years earlier. The court ordered a retrial; at this writing, it was not clear whether prosecutors in Tamualipas state would discontinue the prosecution, a move urged by Human Rights Watch. In another case in which illegal arrest and torture constituted the fundamental investigative techniques—the prosecution of accused murderer Manuel Manríquez—a Mexico City Superior Court magistrate found Manríquez to be innocent in April, based in part on the findings of a report issued in February by the Inter-American Commission on Human Rights. While positive, these cases also highlighted a disturbing weakness in Mexico's justice system: years of injustice could be ignored by judges, and the ability to obtain justice depended not on ingrained respect for human rights within the justice system but on a victim's ability to marshal public support for his or her case.

Human rights issues in Chiapas state also continued to receive significant attention in Mexico. By the time of this writing, twenty people had been sentenced for the December 1997 massacre of forty-five people in the hamlet of Acteal. Federal authorities had assumed jurisdiction over the massacre, which otherwise would have fallen to state authorities to prosecute. For the most part, those sentenced were charged with material authorship of the killings and for possession of weapons reserved for the exclusive use of the army. Among those charged but not yet sentenced was a retired army general, Julio César Santiago Díaz, a public security official at the time of the killings; police under his command ignored signs that the massacre was taking place. Prosecutors accused him of murder by omission.

Federal prosecutors also made advances in thirty-four state-level cases that they took over as part of the Acteal investigation. The cases, all of which took place during the year prior to the massacre but had gone nowhere in state courts, included murder, kidnapping, and other violent crimes in and around Acteal. At this writing, some 193 people had been charged in those cases; several state prosecutors had also been charged for their failure to prosecute cases in which sufficient evidence existed to move forward. Federal prosecutors also made progress in the case of Rubicel Ruiz, another Chiapas state case whose jurisdiction the federal attorney general's office assumed in 1998. Ruiz, who was gunned down in February 1998, worked with peasants seeking benefits from the state. Although federal authorities managed to identify the gunmen and the intellectual author of the crime, a member of a politically powerful family, at this writing the case had yet to be decided in court.

Despite the advances made in the Acteal case, other serious human rights issues in Chiapas remained unresolved. Soon after taking over the Acteal investigation, federal Attorney General Jorge Madrazo announced that his office would be investigating several areas beyond the massacre itself, including the existence of armed civilian groups active in the state, of which more than ten had been reported; the reasons that the state justice system had failed in Chenalhó municipality, in which Acteal sits; and why state authorities had permitted the arming of the group that carried out the massacre. Although those lines of investigation remained open, they had obtained few results. Mexican human rights groups continued to denounce the activity of illegal, armed civilian groups, which they often called paramilitary groups, and the state justice system remained extremely weak. In lieu of resolving these underlying problems, federal authorities continued to rely on the military to ensure calm in Chiapas, although human rights groups, including the Fray Bartolomé de las Casas Center for Human Rights (Centro de Derechos Humanos Fray Bartolomé de las Casas), continued to document cases in which the army's presence was the cause of, rather than remedy for, tension in the state.

In September, the government released a new Chiapas peace proposal after years of moribund negotiations. The plan's content included a promise that authorities would "carefully analyze complaints of harassment and other illegal acts denounced by diverse human rights organizations" and the establishment of a program within the federal Office of the Attorney General to receive and analyze such cases. In October, almost two years after the Acteal massacre, the office announced that

it had established a special unit in Chiapas to investigate armed groups. Authorities had already taken hundreds of actions, including the taking of testimonies, it said.

At this writing, it was not clear whether the proposal would lead to steps to improve the human rights situation in Chiapas. After the peace plan was announced, state officials began to release from jail people detained in 1998 during a government crackdown on "autonomous municipalities," local governments set up by supporters of the Zapatista Army of National Liberation (Ejército Zapatista de Liberación Nacional, EZLN) who refused to recognize the authority of the state government. According to Mexican human rights groups, none of the people who were released should have been detained in the first place; the arrests were marred by illegal procedures, including lack of evidence and failure to obtain arrest warrants.

Guerrero and Oaxaca states also presented disturbing human rights concerns. In January 1999, the Miguel Agustín Pro Juárez Human Rights Center (Centro de Derechos Humanos Miguel Agustín Pro Juárez, PRODH) published a report on these states that documented "the great number of violent acts that have been produced in the context of agrarian problems, local and regional politics, the planting and trafficking of drugs, militarization, and the presence of armed groups." PRODH described specific cases illustrative of these problems, including the illegal detention and torture by soldiers of Rodolfo Montiel Flores and Teodoro Cabrera García, and extrajudicial execution of Salomé Sánchez Ortiz in Pizotla, Guerrero. The three victims were members of an environmental group opposed to logging practices in the region. It was for this work that PRODH suspected that they were attacked. The two surviving victims were forced to confess to crimes they did not commit and were prosecuted in a process fraught with irregularities, including the use of statements given on a military base. PRODH and other Mexican human rights groups also documented in Guerrero the rape of two women and the murder of a man and boy by soldiers in Barrio Nuevo, an area where government opponents had tried for years to establish a local government independent of the ruling party.

Other human rights abuses persisted in Mexico, including labor rights violations and limitations on press freedom. The government's system of labor tribunals continued to limit freedom of association, but even when court victories were obtained by workers, government enforcement did not always follow. One such case monitored closely by Human Rights Watch for several years-involving the Democratic Union of Workers of the Ministry of the Environment, Natural Resources, and Fishing (Sindicato Democrático de Trabajadores de la Secretaría del Medio Ambiente, Recursos Naturales y Pesca, SIDT-SEMARNAP)-remained unresolved. Despite court victories allowing the union to exist formally, government officials still refused to allow the union to function fully. On the positive side, Mexico's Supreme Court issued an important decision in May upholding the right of workers to form more than one union in any government agency.

For journalists covering sensitive topics, like drug trafficking, reporting was still a dangerous profession. Jesús Barraza, editor of the weekly Pulso in San Luis Río Colorado, Sonora state, for instance, was threatened with death after his paper reported on drug issues in May. A state police body guard withdrew his protection after being beaten by federal police officers in June, apparently in retaliation for his protection of the journalist.

Defending Human Rights

Human rights defenders continued to come under attack in Mexico during the year. After documenting the human rights abuses by the army in Pizotla, Guerrero, described above, PRODH staff members received a series of written death threats in August and September. In October they received a bomb threat. It was not clear, however, that the threats were provoked by the Pizotla case.

In Guerrero, Abel Berrera of the Tlachinollan Human Rights Center of the Mountain (Centro de Derechos Humanos de la Montaña "Tlachinollan") received death threats in May after working on human rights cases in which the army appeared to be implicated. In Ixtlayutala, Oaxaca state, Catholic priest José Rentería was threatened in April after interceding on election-related human rights issues. In Nuevo León, Monterrey state, members of Citizens in Support of Human Rights (Ciudadanos en Apoyo a los Derechos Humanos) received threats for their work on prison conditions in the state.

The Mexican government also continued to exert pressure on human rights groups through onerous visa requirements for foreign human rights observers. Instituted in May 1998, the government required visa applicants to produce extensive documentation including a Spanish-language version of their organization's by-laws and letters attesting to their moral rectitude. The names of all locations to be visited had to be provided at least thirty days in advance of the trip, constituting a potential risk to the communities to be visited, whose members could be subjected to surveillance or harassment. At the same time, the specificity of the requirements meant that human rights investigators would be prohibited from searching for information in communities that they did not list on their visa applications, a serious impediment to investigators who needed to follow the leads received during research missions. In September, authorities within the federal Ministry of Government told Human Rights Watch that the visa requirements would be relaxed; at this writing no such change had been instituted. In September, Tom Hansen, an American at the helm of the Mexico Solidarity Network, won a court victory overturning his February 1998 summary expulsion. The following month, a court ruled in favor of twelve foreigners summarily expelled in April 1998.

At several times during the year, human rights defenders were prohibited from traveling to Mexico because Mexican consular officials, or their colleagues in the Ministry of Government in Mexico City, appeared unwilling or unable to process visa requests. In June, a lawyer from the Washington, D.C.-based Center for Justice and International Law (CEJIL) was obliged to cancel her participation in a human rights seminar she was to lead, and another was given a visa at the last minute that permitted her to do only a small portion of what she had planned-and requested-to do.

The Role of the International Community

United Nations and Organization of American States

In June 1999, Special Rapporteur for Extrajudicial, Summary and Arbitrary Executions Asma Jahangir visited several Mexican states, emphasizing, in particular, her concern about the situation in Chiapas. The Mexican government criticized her outspokenness, just as it did in 1998 when High Commissioner for Human Rights Mary Robinson expressed deep concern about human rights violations there. The U.N. Human Rights Committee strongly criticized Mexico in July, noting, among other things, that "alleged acts of torture, enforced disappearances and extrajudicial executions had not been investigated; that the person responsible had not been brought to justice; and that the victims or their families had not received compensation." The committee cited among positive developments in Mexico the increased autonomy of the National Human Rights Commission. The U.N. Subcommission on the Promotion and Protection of Human Rights issued a similar statement in August.

The Inter-American Commission on Human Rights, part of the Organization of American States, continued to pay close attention to Chiapas. Human rights violations there received considerable attention in a September 1998 report on human rights violations in Mexico, and the commission released several case-specific reports. In addition to the report on the Manuel Manríquez case, mentioned above, the commission released important reports concerning the government's tolerance of presumed political murderers in Guerrero state and the case of Jorge Barón Guttlein, Rodolfo Izal Elorz, and Loren Reibe, three priests expelled from Mexico in 1995 under physical and legal conditions that violated their human rights.

European Union

In May, the European Parliament approved an economic partnership, political coordination, and cooperation agreement, which had been signed by Mexico and the European Union in December 1997. Members of the European Parliament emphasized that human rights issues were an important topic to which the parties to the accord should pay attention, and asked the European Commission to produce an annual report on human rights developments in Mexico. The commission ignored the request. At this writing, the full accord was not in force, because four European countries had not ratified it, so cooperation on human rights issues-within the context of the agreement-could not move forward.

United States

The United States has paid increased attention to human rights violations in Mexico in recent years. Following the release of the 1998 State Department report on human rights practices around the world, the United States and Mexico began a series of bilateral meetings on human rights, convened alternately in each country, which continued during 1999. Although the meetings took place outside the framework of the United States's priority bilateral issues-trade, illegal drugs, and immigration-they offered an important opportunity for Washington to voice concern about human rights violations in Mexico. And, just as importantly, the Mexicans had an opportunity to raise concerns about human rights violations in the United States.

Breaking with past practice, on several recent occasions, U.S. officials openly criticized human rights violations in Mexico. Upon the January 19, 1999 release of the Human Rights Watch report *Systemic Injustice: Torture, "Disappearance," and Extrajudicial Execution in Mexico*, State Department Spokesman James Rubin noted, "While we recognize that Mexico has made notable strides in political and electoral reforms in recent years, we remain concerned about persistent human rights problems in Mexico." Asserting that the U.S. government had addressed "many of the concerns which the report raises" with Mexico's director general for human rights, Rubin stated in reference to Chiapas that "we raised our concerns about politically motivated violence in its southern states."

The United States continued to provide military training to Mexico, valued at approximately U.S. \$ 21 million for fiscal year 1999, through the State Department's Bureau of International Narcotics and Law Enforcement and the Defense Department. Although the U.S. government insisted that it applied human rights vetting criteria to Mexican officers who came to the United States for training, it provided no information on how vetting was carried out. Almost \$100 million worth of commercial military purchases made in the United States were expected to be delivered to Mexico during the year.

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